BUREAU OF ROLLS AND LIBRARY
APR 18 1919
DEPARTMENT OF STATE

ORDER BY FRANK L. POLK UNDER AUTHORITY
OF EXECUTIVE ORDER OF DECEMBER 3, 1918

A DETERMINATION, ORDER AND DIRECTION CONCERNING THE TRANSFER, RELEASE AND SURRENDER OF CERTAIN RIGHTS IN AND TO 50,000 SHARES OF THE CAPITAL STOCK OF L. VOGELSTEIN & COMPANY, INC. TO LUDWIG VOGELSTEIN.

- - - - - - - -

By virtue of the authority vested in the President by an Act of Congress entitled "An Act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses, and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes" approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by Executive Order No. 3016 and signed by the President on the third day of December, 1918, and

Whereas, evidence has been presented that Ludwig Vogelstein, being indebted for certain sums to Aron Hirsch & Sohn, of Halberstadt, Germany, -- the amount of which cannot be stated with definiteness until an accounting between the said Ludwig Vogelstein and Aron Hirsch & Sohn after a treaty of peace between the United States and Germany, the said Aron

3016-M

Hirsch & Sohn, after investigation, having been hitherto determined by the Alien Property Custodian to be an enemy not holding a license issued by the President, -- in order to secure the payment of such amount as on accounting should be found and determined to be due to the said Aron Hirsch & Sohn, did deposit in escrow 39,000 shares of stock of L. Vogelstein & Company, Inc., a New York corporation, belonging to him, the amount so found and determined to be due on such accounting to be paid and satisfied by dividing such stock between Ludwig Vogelstein and the said Aron Hirsch & Sohn in accordance with the amounts so found to be due to them from Ludwig Vogelstein and it not appearing that Aron Hirsch & Sohn had knowledge of the deposit of the said shares as security as aforesaid or that they ratified or accepted the terms of the said deposit; and it appearing that the said Ludwig Vogelstein also deposited with trustees 10,000 shares of stock of L. Vogelstein & Company, Inc., belonging to him to secure the performance of a certain agreement between the said Ludwig Vogelstein and one Ernest G. Hothorn; and that the said Ludwig Vogelstein also deposited with trustees 1,000 shares of stock of L. Vogelstein & Company, Inc., belonging to h subject to his own order, the total number of the shares so deposited aggregating 50,000 and being all the capital stock issued and outstanding of said L. Vogelstein & Company, Inc.; and the Alien Property Custodian having heretofore demanded of said trustees that they convey to the Alien Property Custodian such right, title, and interest in the said 50,000 shares as belonged to the said Aron Hirsch & Sohn; and said L. Vogelstein & Company Inc., having thereafter transferred the said 50,000 shares upon its books to the Alien Property Custodian and having issued new certificates therefor, which are now in the possession of the

3016-N

Alien Property Custodian, I hereby in the public interest, make the following determination, direction and order:

The Alien Property Custodian may, and he is hereby authorized and directed to transfer, dispose of, release, surrender, and quitclaim to Ludwig Vogelstein, of the Borough of Manhattan, City of New York, all the rights which the Alien Property Custodian and Aron Hirsch & Sohn, or either of them, have acquired or may acquire by reason of the deposit of the said shares and the transfer of the same to the Alien Property Custodian as aforesaid, in and to 50,000 shares of the capital stock of L. Vogelstein & Company, Inc., a corporation organized under the laws of the State of New York, upon such terms and conditions as the Alien Property Custodian, or his duly authorized agent, may deem proper; including but without limiting the generality of the foregoing, such terms and conditions as will secure the payment by Ludwig Vogelstein to the Alien Property Custodian of any indebtedness now owing, or hereafter determined to be owing by said Ludwig Vogelstein to the said Aron Hirsch & Sohn; and including the power to secure the aforesaid indebtedness of Ludwig Vogelstein to Aron Hirsch & Sohn, by causing the said 50,000 shares, or any part thereof so released to Ludwig Vogelstein, to be held as security for the payment of the said indebtedness under such form of trust agreement or otherwise as may seem proper to the Alien Property Custodian, or his duly authorized agent; and including the power to make such arrangements as the Alien Property Custodian deems expedient to prevent the said 50,000 shares of the capital stock of L. Vogelstein & Company, Inc., or any part thereof from passing into German hands or into German control for such period as may seem proper to the Alien Property Custodian.

My reasons in the public interest, for the foregoing determination, direction, order, rule and regulation are:

(a) The evidence presented shows that the sole interest of the Alien Property Custodian in said 50,000 shares of stock is the right to hold the same as collateral for the payment of said indebtedness of said Ludwig Vogelstein to Aron Hirsch & Sohn;

(b) That said Ludwig Vogelstein has offered to pay a portion of said indebtedness and secure the payment of the balance and has demanded the surrender and release to him of said 50,000 shares of stock and of all the right, title and interest therein of said Aron Hirsch & Sohn and of the Alien Property Custodian;

(c) That the only effective method whereby the indebtedness of said Ludwig Vogelstein to Aron Hirsch & Sohn, insofar as the same can now be determined, can be speedily liquidated is by the transfer, surrender, and release of said 50,000 shares of stock of L. Vogelstein & Company, Inc., and of the right, title, and interest therein of said Aron Hirsch & Sohn and of the Alien Property Custodian, to said Ludwig Vogelstein, who will thereupon pay a portion of said indebtedness and secure the payment of the balance.

Done in the District of Columbia this 18th day of April, in the year of Our Lord One Thousand Nine Hundred and Nineteen, and of the Independence of the United States of America the One Hundred and Forty-third.